If these questions could not be asked, much beneficent legislation would be stifled at birth, and many of the subjects entrusted to the Provisional Legislature could never effectively be deals with.

2. The extents of the invasion by the Provinces into subjects enumerated in the Federal List has to be considered. No doubt it is an important matter, not because the validity of an Act can be determined by discriminating between degrees of invasion, but for the purpose of determining what is the pith and substance of the impugned Act.

3. Where the three lists come in conflict, List I has priority over Lists III and II, and List III has priority over List II. But, the question still remains, priority in what respect? Does the priority of the Federal Legislature prevent the Provincial Legislature from dealing with any matter which may incidentally affect any item in its list or in each case has one to consider what the substance of the Act is and, whatever its ancillary effect, attribute it to the appropriate list according to its true character? The latter is the true view.

In the post-Constitution period, the Supreme Court has consistently applied the above principles in a number of cases.

4. Important Cases

The important cases relating to the doctrine of pith and substance and their judgements are given in Table 94.3.

Table 94.3 Important Cases Relating to the Doctrine of Pith and Substance

Sl. No.	Case (Year)	Supreme Court Judgement
1.	State of Bombay vs. F.N. Balsara (1951)	It upheld the validity of the Bombay Prohibition Act, 1950. This Act was challenged on the ground that in encroached upon a matter enumerated in the Union List.
2.	D.N. Banerji vs. P.R. Mukherjee (1952)	It upheld the validity of the Industrial Disputes Act of the Parliament. This Act (in so far as it applied to the municipalities) was challenged on the ground that it related to the local government which was a subject enumerated in the State List.
3.	State of Rajasthan vs. G. Chawla (1958)	It upheld the validity of the Rajasthan Act which restricted the use of sound amplifiers. This Act was challenged on the ground that it encroached upon the subject of broadcasting or communication which is mentioned in the Union List.
4.	State of Gujarat vs. Shantilal Mangaldas (1969)	It held that the doctrine of pith and substance is applicable in determining whether an Act is within the competence of the